

TENTATIVE RULINGS
LAW AND MOTION CALENDAR

Judge Thomas J. Lo

Department C44

Hearing Date and Time: September 03, 2026 @ 8:30 AM

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5244. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.).

Appearances: Department C44 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C44 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5244 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
1	Bailey vs. BDC/Anaheim, LLC 2023-01307941	Motion for Leave to Amend Plaintiff Kimberly Bailey’s Motion for Leave to File a First Amended Complaint is GRANTED. (Code Civ. Proc. §473, subd. (a)(1); <i>Atkinson v. Elk Corp</i> (2003) 109 Cal.App.4th 739, 761 [policy of great liberality in permitting amendments]; <i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428 [policy favoring amendment so strong it is rare case in which denial of leave to amend can be justified].) Defendant Swinerton’s argument that Plaintiff’s motion does not comply with Cal. Rules of Court 3.1324 is not persuasive. The Moving Papers sufficiently state the allegations being added via amendment and their legal effect. (See Wilson Decl. ¶2.) Defendant Swinerton’s arguments directed at the substantive merit of Plaintiff’s proposed amendments is not a ground to deny the motion. (See <i>Atkinson v. Elk Corp. (2003)</i> 109 Cal.App.4th 739, 760 [“the better course of action would have been to allow [plaintiff] to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings”].) Defendants BDC and Radisson’s fail to establish any cognizable prejudice that would result from permitting the filing of the proposed First Amended Complaint. Trial is months away and the addition of a prayer for punitive damages is based upon the same operative facts that have been the basis of this lawsuit since its commencement. Defendants’ conclusory protestations of prejudice do not overcome the strong policy in support of permitting amendments to the pleadings. Plaintiff shall separately file and serve the proposed First Amended Complaint within 5 days of this ruling. Separate filing of the proposed First Amended Complaint is required to ensure it is properly indexed in the Court’s electronic filing system. Plaintiff shall provide notice.
2	Caronna vs. Trinity International University 2026-01564645	Motion to Appear Pro Hac Vice <i>Continued to 11/19/26.</i>

3	Creighton vs. Hyundai Motor America 2025-01493450	Demurrer to Complaint Motion to Strike <i>Hearings vacated.</i>
4	Dale L. Woodward, Trustee of the Woodward Family Trust vs. Canyon Hills Estates Homeowners Association 2026-01545101	Demurrer to Complaint <i>Hearing vacated.</i>
5	Kiani vs. Masimo Corporation 2026-01546059	Motion to Appear Pro Hac Vice (2) <i>Continued to 11/19/26.</i>
6	MEJIA vs. BROOKSIDE APARTMENTS, LLC. 2026-01551413	Demurrer to Complaint Defendants Casa La Veta Associates, L.P.; Richard Tucker, Jr. and Kathleen A. Tucker, as Trustees of the Richard M. Tucker and Kathleen A. Tucker Family Trust dated February 19, 2004; and Jamboree Management's Demurrer to the Complaint is OVERRULED in part and SUSTAINED in part. Defendants did not adequately engage in the meet and confer process. Code of Civil Procedure section 430.41 requires the parties to meet and confer "in person, by telephone, or by video conference." (Code Civ. Proc. § 430.31, subd. (a).) The declaration of Branden Frankel references only a letter sent to Plaintiffs' counsel via email. Defendants are advised that any future motions that require a meet and confer, must comply with the Code. Failure to do so may result in denial of the motion. <i>First Cause of Action - Violation of California Civil Code § 1942.4</i> Civil Code § 1942.4 prohibits a landlord from demanding or collecting rent if the rental property is substandard and the landlord has failed to make necessary repairs. Such conditions include the following: (1) The dwelling substantially lacks any of the affirmative standard characteristics listed in Section 1941.1 or violates Section 17920.10 of the Health and Safety Code, or is

		deemed and declared substandard as set forth in Section 17920.3 of the Health and Safety Code... (2) A public officer or employee who is responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or the landlord's agent in writing of his or her obligations to abate the nuisance or repair the substandard conditions. (3) The conditions have existed and have not been abated 35 days beyond the date of service of the notice specified in paragraph (2) and the delay is without good cause... (Civ. Code § 1942.4(a).) Plaintiffs incorporate an inspection report of the Property prepared by Inspector D. Nguyen of the Orange County Health Care Agency. Defendants argue the report does not indicate that the landlord or the landlord's agent was notified in writing of an obligation to abate the nuisance or repair the substandard condition. Moreover, the report is limited to an investigation of purported insect infestation, and not any of the characteristics listed in Section 1941.1. Section 1941.1 states that a dwelling must have plumbing that is maintained in good working order and "electrical lighting, with wiring and electrical equipment" that is maintained in good working order. (Civ. Code § 1941.1, subd. (2) and (5).) Additionally, all areas of the building under control of the landlord are to be kept in every part clean and sanitary. (Civ. Code § 1941.1, subd. (6).) In opposition, Plaintiffs contend they allege multiple conditions rendering the Property uninhabitable, including infestations, mold contamination, defective plumbing and unsafe electrical systems. (Complaint, ¶ 20.) Such allegations are sufficient to state a claim for violation of Section 1942.4. Accordingly, the demurrer to the FIRST cause of action is OVERRULED. <i>Second Cause of Action – Breach of the Warranty of Habitability</i> "A warranty of habitability is implied by law in residential leases. The elements of a cause of action for breach of the implied warranty of habitability are the existence of a material defective condition affecting the premises' habitability, notice to the landlord of the condition within a reasonable time after the tenant's
--	--	--

	discovery of the condition, the landlord was given a reasonable time to correct the deficiency, and resulting damages.” (<i>Peviani v. Arbors at California Oaks Property Owner, LLC</i> (2021) 62 Cal.App.5th 874, 891 [citation modified].) The Complaint states that “despite notice to management” and “written notices” about the conditions, no repairs to the Property were made. Such allegations are insufficient to demonstrate the landlord had notice of the condition(s) and failed to correct the deficiency within a reasonable time. No information is provided regarding the nature of the notice and when the notice was provided to Defendants. Accordingly, the demurrer to the SECOND cause of action is SUSTAINED. <i>Fourth Cause of Action – Violation of Bus. & Prof Code § 17200</i> The Unfair Competition Law (UCL), Business and Professions Code section 17200 et seq., prohibits unfair competition, including unlawful, unfair or fraudulent business acts. (<i>Cel-Tech Comm., Inc. v. Los Angeles Cellular Tele. Co.</i> (1999) 20 Cal.4th 163, 180.) “A UCL action is an equitable action by means of which a plaintiff may recover money or property obtained from the plaintiff or persons represented by the plaintiff through unfair or unlawful business practices. It is not an all-purpose substitute for a tort or contract action.” (<i>Cortez v. Purolator Air Filtration Products Co.</i> (2000) 23 Cal.4th 163, 173.) Plaintiffs have properly pled an unfair business practice by alleging a violation of Section 1941.1. Accordingly, the demurrer to the FOURTH cause of action is OVERRULED. <i>Seventh Cause of Action – IIED</i> To state a cause of action for Intentional Infliction of Emotional Distress (“IIED”), the plaintiff must allege: (1) outrageous conduct by the defendant; (2) the defendant’s intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff’s suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. (<i>Yau v. Santa Margarita Ford, Inc.</i> (2014) 229 Cal.App.4th 144, 161.) For conduct to be outrageous for purposes of IIED, the conduct must be so extreme as to exceed all bounds of that usually tolerated in a civilized society. (<i>Id.</i>) In addition, “[the defendant’s] conduct [must be]
--	---

	directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware.” (<i>Christensen v. Superior Court</i> (1991) 54 Cal.3d 868, 903.) Here, the only conduct alleged by Defendants is entering their unit without notice, photographing personal belongings without consent, offering inadequate relocation incentives, and dismissing or minimizing their complaints rather than correcting the hazardous conditions. (Complaint, ¶ 143.) While such conduct might be negligent in nature, it does not arise to conduct so extreme it exceeds all bounds of that usually tolerated in a civilized society. Accordingly, the demurrer to the SEVENTH cause of action is SUSTAINED. <i>Eighth Cause of Action – Negligence Per Se</i> The negligence per se doctrine, as statutorily codified, creates a presumption of negligence if four elements are established: (1) the defendant violated a statute, ordinance, or regulation of a public entity; (2) the violation proximately caused death or injury to person or property; (3) the death or injury resulted from an occurrence of the nature of which the statute, ordinance, or regulation was designed to protect; and (4) the person suffering the death or the injury to his person or property was one of the class of persons for whose protection the statute, ordinance, or regulation was adopted.” (<i>Spates v. Dameron Hospital Assn.</i> (2003) 114 Cal.App.4th 208, 218; Evid. Code § 669.) The first two elements are questions of fact, while the latter two are questions of law. (<i>Ibid.</i>) California does not recognize an independent cause of action for negligence per se; rather, it is an evidentiary presumption used to establish one of the several elements necessary to prove negligence. [citation] As such, ‘an underlying claim of ordinary negligence must be viable before the presumption of negligence [per se] of evidence Code section 669 can be employed.’ [citation]” (<i>Quinn v. Coulton</i> (2026) 121 Cal.App.5th 1124, 346 Cal.Rptr.3d 320, 329.) Because negligence per se is not an independent cause of action, but an evidentiary presumption, the demurrer to the EIGHTH cause of action is SUSTAINED without leave to amend. <i>Ninth Cause of Action – Violation of Consumer Remedies Act</i>
--	---

A person has standing to bring a claim under the unfair competition law, the false advertising law, or the CLRA only if she establishes that (1) she “has suffered” “economic injury” or “damage,” and (2) this injury or damage “was the result of, i.e., *caused by*,” the unfair business practice, false advertising or the CLRA violation “that is the gravamen of [her] claim. [citation] To prove the second element of causation, the plaintiff must show that she ‘actual[ly] reli[ed]’ on the ‘allegedly deceptive or misleading statements’ and that it ‘was an immediate cause’ of her injury. [citation]...a particular statement may be ‘fraudulent’ to a ‘reasonable consumer’ without ‘individualized proof of deception, reliance and injury,’ ‘the showing of actual reliance necessary to establish a plaintiff’s standing is different and, more to the point, more demanding.’” (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1137.)

Plaintiffs cite three actionable provisions of Civil Code section 1770(a): “(7) Representing that goods or services are of a particular standard, quality, or grade ... if they are of another... (16) Representing that the subject of a transaction has been supplied in accordance with a previous representation when it has not... (19) Inserting an unconscionable provision in the contract.” (Complaint, ¶ 165.)

Here, Plaintiffs’ allegations are sufficiently vague regarding the deceptive or misleading statements they relied upon in deciding to rent the Property. The Complaint states “Plaintiffs identified an advertisement for the Subject Property, which **on information and belief** implied that the Property was in a condition fit for human occupancy.” (Complaint, ¶ 168.) Such allegations are insufficient to demonstrate a deceptive or misleading statement. Plaintiffs also do not allege they relied on such advertising statements.

Moreover, the Complaint fails to identify what provision of the lease are unconscionable.

Furthermore, to be entitled to damages under the Consumer Legal Remedies Act, thirty days or more prior to the commencement of this action, Plaintiffs must have notified Defendants of the alleged violation in writing by certified or registered mail, return receipt requested and demanded the correction of the violation. [Emphasis added.] (Civ. Code § 1782, subd. (a).) Plaintiffs have not alleged compliance with Section 1782. Therefore, they cannot maintain an action for damages under the CLRA..

For the foregoing reasons, the demurrer to the NINTH cause of action is **SUSTAINED**.

Tenth Cause of Action – Trespassing

The elements of trespass are: (1) the plaintiff's ownership or control of the property; (2) the defendant's intentional, reckless, or negligent entry onto the property; (3) lack of permission for the entry or acts in excess of permission; (4) harm; and (5) the defendant's conduct was a substantial factor in causing the harm." (*Ralphs Grocery Co. v. Victory Consultants, Inc.* (2017) 17 Cal.App.5th 245, 262.)

The Complaint alleges that Defendants "would frequently enter the Subject Premises, without the Plaintiffs' permission, or consent." (Complaint, ¶ 178.) No harm is alleged from such conduct. Again, these allegations are insufficient to satisfy the elements necessary to state a cause of action for trespass.

Accordingly, the demurrer to the TENTH cause of action is **SUSTAINED**.

Eleventh Cause of Action – Intentional Influence to Vacate

Civil Code section 1940.2 makes it unlawful for a landlord to commit certain specified acts such as engaging in conduct that violates Penal Code sections 484 (larceny) and 518 (extortion) or "threaten to use, force, willful threats, or menacing conduct "for the purpose of influencing a tenant to vacate a dwelling."

The Complaint alleges that "Defendants engaged in a pattern and practice of dismissing repair requests, ignoring complaints about dangerous living conditions, and issuing retaliatory threats of eviction, with the intention and effect of interfering with Plaintiffs' quiet enjoyment of the premises." (Complaint, ¶ 188.)

Dismissing repair requests and threats of eviction, without more, do not constitute a violation of Section 1940.2. Accordingly, the demurrer to the ELEVENTH cause of action is **SUSTAINED**.

Twelfth Cause of Action – Negligent Infliction of Emotional Distress

The negligent causing of emotional distress is not an independent tort, but the tort of negligence to which the traditional elements of duty, breach of duty, causation, and damages apply.. (*Burgess v.*

	<i>Superior Court</i> (1992) 2 Cal.4th 1064, 1072.) NIED claims arise in two contexts: direct victim and bystander. “Bystander” claims involve emotional distress caused by witnessing injury to close family members. (<i>Klein v. Children’s Hospital Medical Center</i> (1996) 46 Cal.App.4th 889 , 894.) “Direct victim” claims will lie where duty from preexisting relationship is negligently breached. (<i>Ibid.</i>) “[T]he negligent infliction of emotional distress-anxiety, worry, discomfort-is compensable without physical injury in cases involving the tortious interference with <i>property rights</i>.” (<i>Erlach v. Sierra Asset Servicing, LLC</i> (2014) 226 Cal.App.4th 1281, 1299.) “Thus, if [defendant’s] failure to repair the premises constitutes a tort grounded on negligence, [plaintiff] is entitled to prove his damages for emotional distress because the failure to repair must be deemed to constitute an injury to his tenancy interest (right to habitable premises), which is a species of property.” (<i>Ibid.</i>) Here, the Complaint does not allege a bystander claim, but a direct victim action. Plaintiffs contend Defendants’ conduct in allowing “persistent infestations, mold contamination, plumbing and electrical defects, structural deterioration, inadequate security and unauthorized entries” caused Plaintiffs’ severe emotional distress. (Complaint, ¶ 194.) Defendants argue that California courts have not found that the landlord/tenant relationship is one which imposes upon Defendants a heightened duty to Plaintiffs. However, Defendants cite to no case law that supports such a proposition. To the contrary, <i>Erlach</i>, supra, held that a tenant could allege a claim for negligent infliction of emotional distress. Thus, based on Plaintiffs’ allegations of negligence for failure to repair the Property, they can state a claim for negligent infliction of emotional distress. Accordingly, the demurrer to the TWELFTH cause of action should be OVERRULED. <i>Thirteenth Cause of Action – Fraud and Deceit</i> The Complaint alleges Defendants engaged in fraudulent deceit as defined by Civil Code sections 1709 and 1710. Section 1709 provides as follows: “One who willfully deceives another with intent to induce him to alter his position to his injury or risk, is liable for any damage which he thereby suffers.”
--	--

Section 1710 provides that: “A deceit, within the meaning of the last section, is either:

1. The suggestion, as a fact, of that which is not true, by one who does not believe it to be true;
2. The assertion, as a fact, of that which is not true, by one who has no reasonable ground for believing it to be true;
3. The suppression of a fact, by one who is bound to disclose it, or who gives information of other facts which are likely to mislead for want of communication of that fact; or,
4. A promise, made without any intention of performing it.

“In California, fraud must be pled specifically; general and conclusory allegations do not suffice.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) “This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (Ibid. [cleaned-up].)

The Complaint alleges that Defendants failed to disclose a severe and persistent bed bug infestation, falsely represented that certain repairs needed to be performed, and failed to advise the Plaintiffs that their Property had no health and safety concerns. (Complaint, ¶¶ 198-200.) However, the Complaint lacks specificity regarding how, when, where, to whom and by what means the representations were made. Thus, Plaintiffs have failed to adequately plead a claim for fraud.

Accordingly, the demurrer to the THIRTEENTH cause of action is **SUSTAINED**.

Plaintiffs have 20 days leave to amend the Complaint.

Motion To Strike

Defendants Casa La Veta Associates, L.P.; Richard Tucker, Jr. and Kathleen A. Tucker, as Trustees of the Richard M. Tucker and Kathleen A. Tucker Family Trust dated February 19, 2004; and Jamboree Management’s Motion to Strike is **DENIED**.

Defendants move to strike 51 items from the Complaint on the ground they consist of improper claims for punitive damages, statutory damages, restitution, and attorney fees:

		Code of Civil Procedure section 436 provides, “The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading, (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” Defendants seek to strike certain portions of the Complaint without identifying which statutory ground applies (irrelevant, false, or improper matter under § 436(a), or non-conformity with law or court order under § 436(b)) to each paragraph or item sought to be struck. Rather, Defendants simply identify the paragraphs and items to be stricken, then provide legal arguments without stating what legal arguments apply to which paragraphs or items. Thus, Defendants fail to give the court or opposing party adequate notice of the basis for the challenge. Accordingly, the motion is DENIED. Case Management Conference continued to February 26, 2027 at 8:30 a.m. in Department C44. Clerk to give notice.
7	Telfer-Radzat vs. Sycamore Creek Community Charter School 2026-01541439	Motion to Strike - Anti SLAPP Defendant Sycamore Creek Community Charter School’s special motion to strike the complaint of Kimberly Telfer Radzat is DENIED. Sycamore has not met its initial burden showing the subject of the alleged defamatory comment arises from a protected activity. The termination letter does not arise from any act of Sycamore in furtherance it’s right of petition or free speech in connection with a public issue rendering it subject to a special motion to strike. (Cal. Civ. Pro., Section 425.16.) Therefore, Sycamore has not met its burden on the first step of the anti-SLAPP analysis. In <i>Bishop v. The Bishop's School</i> (2022) 86 Cal.App.5th 893, the court held that a letter terminating a teacher’s employment was not entitled to protection under the anti-SLAPP statute. In that case, the school argued that its termination letter, which concerned a teacher’s inappropriate communications with a student, implicated the public interest of protecting children. While the court agreed that the subject matter touched on a public interest, it

		held that the defendants had not shown that the statements in the termination letter furthered or contributed to a public discussion of that issue, and that the trial court failed to undertake the required contextual analysis. The court further held that the school's decision to terminate the teacher was itself not entitled to anti-SLAPP protection. Although the subject matter of the letter here, a teacher's alleged physical mistreatment of a special needs student, plainly implicates a matter of public interest, that alone does not confer anti-SLAPP protection on the termination letter itself. Under <i>Bishop</i>, even where the termination and its stated reasons implicate an issue of public interest, the school must separately demonstrate that the specific statements in the letter furthered or contributed to a public discussion of that issue. A private termination letter sent directly to the teacher being released, without broader public dissemination or connection to an ongoing public proceeding or forum, does not satisfy this requirement. Case Management Conference continued to February 26, 2027 at 8:30 a.m. in Department C44. Sycamore to give notice.
8	Weaver vs. Chauhan 2025-01500925	Demurrer to Amended Complaint <i>Continued to 11/12/26.</i>